

Manveer Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 January 2018 · Writ-C No. 3253 of 2018 · **Writ disposed; petitioner relegated to clause 6.14 instalment application.**

HEADNOTE

A consumer who does not dispute outstanding electricity dues but seeks to pay in instalments must apply under clause 6.14 of the Electricity Supply Code, 2005. That clause empowers the licensee to extend instalments to consumers in financial distress, and sub-clause (2) prescribes the procedure. The writ court will not stay recovery on the merits; it will leave the application to be considered and decided by the concerned authority in accordance with law expeditiously.

FACTUAL SUMMARY

Manveer Singh petitioned the Allahabad High Court against recovery proceedings started by the electricity corporation for outstanding dues. He did not dispute the amount, but asked to pay in instalments. Counsel for the distribution licensee accepted notice and pointed to clause 6.14 of the Electricity Supply Code, 2005 as the route for an instalment facility. The Division Bench disposed of the writ on that alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 confers power on the licensee to extend an instalment facility to consumers in financial distress; sub-clause (2) provides the procedure. A consumer facing recovery of undisputed outstanding dues who seeks instalments must apply to the concerned authority under clause 6.14. The writ court will dispose of the petition by directing that authority to consider and decide any such application in accordance with law and the prescribed procedure expeditiously. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Writ against recovery of undisputed dues was disposed of without granting instalments, because clause 6.14 already supplies that facility for consumers in financial distress and the application must go to the licensee. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALMENTS, AND ON WHAT TERMS

Left to the concerned authority under clause 6.14; no merits direction to grant or refuse instalments. ¶ 1